

Court No. - 21

Case :- WRIT - C No. - 4171 of 2023

Petitioner :- Smt. Amrawati Devi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Brajesh Kumar Singh

Counsel for Respondent :- CSC, Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Sri N.K. Tiwari, learned counsel for the respondent-Electricity Department prays for and is granted time to obtain instruction.

List as fresh 15.2.2023.

Order Date :- 6.2.2023

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(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

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Counsel for Respondent :- CSC, Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

Sri Narendra Kumar Tiwari, learned counsel for the respondent Electricity Department prays for and is granted a week's time to complete his instructions and place on record the material to show that the procedure prescribed under the Electricity Supply Code, 2005 was followed.

As prayed, list as fresh on 24.02.2023.

Order Date :- 15.2.2023

Abhishek Gupta

(Syed Qamar Hasan Rizvi,J.) (Manoj Kumar Gupta,J.)

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

Sri N.K. Tiwari, learned counsel for the respondent-Corporation has received instruction according to which permanent disconnection of the electric connection earlier sanctioned in favour of the petitioner was carried out in the past but during course of checking the petitioner was found using the electricity and thus according to him it was a case of theft of electricity.

He seeks time to obtain further instructions in the matter.

Accordingly the matter is adjourned.

List as fresh on 13.03.2023.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 24.2.2023

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Court No. - 21

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Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Brajesh Kumar Singh

Counsel for Respondent :- CSC, Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has prayed for quashing of the demand notice dated 29.8.2022 issued against her by the respondent Electricity Department even after permanent disconnection of the electricity supply.

Sri N.K. Tiwari, learned counsel for the respondent Electricity Department, on instructions admits that the impugned demand notice was issued by mistake and it has been withdrawn. Communication dated 10.3.2023 by the Executive Engineer of the Electricity Department to the petitioner informing her about the same, has been placed before us for our perusal.

Having regard to the above development, nothing further survives to be decided in the instant matter. The petition stands disposed of accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 13.3.2023

Jaideep/-